



SPONSOR: Sen. Brown & Sen. Pinkney & Rep. Cooke
Sens. Cruce, Hansen, Hoffner

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 34

AN ACT TO AMEND TITLE 25 OF THE DELAWARE CODE RELATING TO TENANT'S RIGHT TO EARLY LEASE TERMINATION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 5314, Title 25 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 5314. Tenant's right to early termination.

4 (b) Upon 30 days' written notice, which 30-day period ~~shall begin~~ begins on the first day of the month following
5 the day of actual notice, the tenancy may be ~~terminated~~; terminated as follows:

6 (1) By ~~the~~ a tenant, whenever a change in location of the tenant's employment with the tenant's present
7 employer requires a change in the location of the tenant's residence ~~in excess of 30 miles~~; of more than 30 miles.

8 (2) By ~~the~~ a tenant, whenever the serious illness of the tenant or the death or serious illness of a member of the
9 tenant's immediate family, residing therein, requires a change in the location of the tenant's residence on a permanent
10 ~~basis~~; basis.

11 (3) By ~~the~~ a tenant, when the tenant is accepted for admission to a senior citizens' housing facility, including
12 ~~subsidized public or private housing, or a group or cooperative living facility or retirement home~~; long-term care
13 facility as defined in § 1102 of Title 16.

14 (4) By ~~the~~ a tenant, when the tenant is accepted for admission into a rental unit subsidized by a governmental
15 entity or by a private nonprofit corporation, including subsidized private or public ~~housing~~; housing.

16 (5) By ~~the~~ a tenant who, after the execution of such rental agreement, enters the military service of the United
17 States on active ~~duty~~; duty.

18 (6) By a tenant who is the victim of domestic abuse, sexual offenses, or stalking, or a tenant who has obtained
19 or is seeking relief from domestic violence or abuse from any court, police agency, or domestic violence program or
20 ~~service~~; service.

21 (7) By the surviving spouse or personal representative of the estate of ~~the~~ a tenant, upon the death of the
22 tenant.

23 (8) By the tenant, when the tenant enters into a contract to purchase real property the tenant intends to occupy
24 as a primary residence.

SYNOPSIS

This Act allows a tenant to terminate a rental agreement early if they are purchasing a home by providing 30 days' written notice to the landlord. The 30-day period begins on the first day of the month after the day the notice is given. This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual. This Act updates language for group or cooperative living facility and retirement home to the definition of long-term care facility in §1102 of Title 16. And this Act removes references to subsidized public or private housing from § 5314(b)(3) of Title 25 because it is repeated in § 5314(b)(4) of Title 25.

Author: Senator Brown